

SETTLEMENT AGREEMENT

THIS SETTLEMENT AGREEMENT (this "*Agreement*") is made and entered into effective as of November 1, 2022 (the "*Effective Date*") between and among the following:

1. Utah County and its police officer Doug Howell (the "*Utah County Parties*");
2. American Fork City and its police officer Shaun Lott the "*American Fork Parties*";
3. Spanish Fork City and its police officers Brandon Johnson and Zac Robinson ("*Spanish Fork Parties*," together with the Utah County Parties and American Fork Parties, the "*Defendant Parties*"); and
4. Michael Anthony Roy ("*Roy*").

Each party as a "*Party*" and collectively as the "*Parties*."

RECITALS

A. In January 2019, Roy was arrested by Defendants and alleges that Defendants violated his civil rights, including by arresting him and by using excessive force (the "*Arrest*").

B. Plaintiff filed a lawsuit against Defendants in the United States District Court, District of Utah, Case No. 2:22-cv-421, alleging claims under 42 USC § 1983.

C. The Parties mediated the dispute on November 1, 2022, and have agreed to settle the Lawsuit, all claims asserted therein, and all civil complaints between the Parties.

NOW, THEREFORE, in consideration of the foregoing recitals and mutual covenants and releases hereinafter set forth, and other good and valuable consideration, the receipt and adequacy of which is hereby acknowledged, the Parties agree as follows:

AGREEMENT

NOW, THEREFORE, for good and valuable consideration, the receipt and legal sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Payment to Roy.** Within twenty-one (21) days from the Effective Date, the Defendant Parties shall make payment(s) to Roy NINETY-THREE THOUSAND and NO/100 DOLLARS U.S. (\$93,000.00) (the "*Payment*"), in amounts agreed to between the Defendant Parties. The Payment shall be by checks or wire transfers made payable to "Sykes and McAllister Law Offices" and shall be delivered to the offices of Sykes McAllister, legal counsel for Roy.

2. **Releases by Roy.** Roy, on behalf of himself, as well as on behalf of his heirs, his attorneys, his agents, assigns, hereby waives any claims against, forever discharges, and releases each of the Defendant Parties, predecessors, successors, related and affiliated entities, and assigns, and the children and spouses of such individuals (including, without limitation, Howell, Lott, Robinson, Johnson, Utah County, American Fork City, and Spanish Fork City, and each of their managers, officers, directors, officials, and employees, employers, insurers, successors and assigns (collectively, the "*Defendant Releasees*") from and against any and all claims, counterclaims,

third-party claims, cross-claims, charges, demands, losses, damages, obligations, liabilities, grievances, causes of action, or suits at law and/or equity of whatsoever kind or nature, including without limitation those that were or could have been asserted in any of the Litigation, as well as expenses, costs, and attorneys' fees, whether any of the foregoing are known or unknown, suspected or unsuspected, liquidated or unliquidated (each, a "**Claim**" and collectively the "**Claims**"), that Roy, or any of them, acting in any capacity, and in all capacities, has, had, or may claim to have against any of the Defendant Releasees. Notwithstanding anything in this Agreement to the contrary, the foregoing release does not apply to any cause of action arising from a breach of this Agreement, which is hereby expressly preserved.

3. **Broad, General Releases.** The Parties understand and agree that the foregoing releases by Roy is a broad, general releases and that, following execution of this Agreement by the Parties, and subject to the obligations expressly set forth herein, Roy shall have no Claim against any of the Defendant Releasees and/or against their insurers.

4. **Express Third-Party Beneficiaries.** The Defendant Releasees and their insurers are intended third-party beneficiaries of the releases set forth in the above paragraphs. Otherwise, there are no intended third-party beneficiaries of this Agreement.

5. **Dismissal of Litigation.** Upon satisfaction of the payment obligations herein, the Parties through their respective legal counsel shall cause all claims, demands, notices of claim, and Litigation, including the lawsuits identified herein, to be dismissed with prejudice, or, if a formal lawsuit has not been filed, to be permanently and irrevocably withdrawn and cancelled, with no costs or fees awarded to any party thereto. Roy's legal counsel shall prepare the initial drafts of the dismissal documents.

6. **Non-assignment of Claims; Lawfully Entitled.** The Parties hereby covenant, warrant, and represent that they have not assigned or transferred any of their rights to any of the Claims released herein and that they are lawfully entitled to make this Agreement and to receive the satisfaction described herein.

7. **No Admissions.** By entering into this Agreement, no Party admits any liability or the existence of any fact supporting such liability; each Party disclaims any liability imputed to it in connection with the dispute.

8. **Choice of Law; Successors and Assigns; Attorneys Fees; Interpretation; Integrated Agreement; Counterparts.** This Agreement shall be governed by the laws of the State of Utah. This Agreement shall be binding upon and shall inure to the benefit of the Parties and their successors and assigns. In the event legal action is commenced by any party to enforce or interpret any term or obligation contained in this Agreement, the prevailing party in any such action shall be entitled to recover from the non-prevailing party its reasonable attorney fees and costs incurred by the prevailing party. This Agreement shall be construed as though all Parties equally had drafted it. This Agreement sets forth the entire understanding and agreement between the Parties with respect to the subject matter hereof, and supersedes all prior negotiations, representations, understandings, agreements, or arrangements between them, whether written or oral, with respect to the subject matter hereof. The Parties agree that this Agreement may be

executed in multiple counterparts and, upon such execution, all the counterparts taken together shall constitute one and the same agreement.

9. **Amendments and Modifications.** This Agreement can be changed only by an instrument in writing and signed by the Parties.

10. **Authority to Enter into This Agreement.** Each of the Parties represents and warrants that he/she/it has the full right and authority to enter into this Agreement.

11. **Confidentiality.** Roy agrees that he will maintain the confidentiality of this Agreement, unless any of the Defendant Releasees make any public statements about the Agreement.

12. **Liens.** Roy warrants that all outstanding liens of any kind arising from claims he has asserted as a result of the Arrest have been or will be satisfied with the funds received in exchange for this Release. Roy has not received benefits under Medicare or Medicaid related to injuries allegedly sustained as a result of the Arrest. If Roy has received Medicare or Medicaid benefits, Roy agrees to cover all such costs. Roy further agrees to defend, indemnify and hold Defendant Releasees harmless from any claims, attorneys' fees or other expenses that might be asserted against them by any lienholder or other third party as a result of the claims Roy has asserted, including all private insurers, Medicare, Medicaid, or any other government insurance plan.

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WHEREFORE, the Parties have executed this Agreement as of the Effective Date.

"Roy:"



Michael Anthony Roy

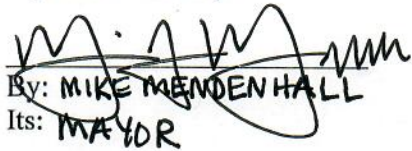
"Utah County

By: Robert Moore
Its: Deputy County Attorney

"American Fork City"

By: _____
Its: _____

"Spanish Fork City"



By: MIKE MENDENHALL
Its: MAYOR